

Multiple Choice

1. **Answer:** D

Options: A) Grounds include high crimes and misdemeanors; B) A majority vote in the House is necessary to invoke charges of impeachment; C) Grounds include treason and bribery; D) A three-fourths vote in the Senate is necessary to convict and remove from office

Note: The correct answer is based on the fact that a two-thirds vote in the Senate is required for conviction and removal from office, not a three-fourths vote, making the statement incorrect.

2. **Answer:** A

Options: A) We cannot objectively know what is morally right or wrong.; B) Natural law is backward-looking.; C) There is no such thing as a social contract.; D) Natural law fails to protect the state against attacks.

Note: Hume's critique of natural law emphasizes that moral judgments are rooted in human emotions and subjective experiences rather than objective truths, making it impossible to definitively ascertain what is morally right or wrong.

3. **Answer:** E

Options: A) The law is necessary for a legitimate government purpose.; B) The law is rationally related to an important government purpose.; C) The law is unnecessarily related to a compelling government purpose.; D) The law is substantially related to an important government purpose.; E) The law is necessary to achieve a compelling government purpose.

Note: The law must be necessary to achieve a compelling government purpose because under strict scrutiny, which is applied to laws affecting fundamental rights, any law that restricts such rights must serve a significant governmental interest and be narrowly tailored to achieve that interest.

4. **Answer:** E

Options: A) Article 19; B) Article 11; C) Article 12; D) Article 9; E) Article 3

Note: Article 3, which prohibits torture and inhuman or degrading treatment, is considered an absolute right without limitations, distinguishing it from qualified rights that may be restricted under certain circumstances.

5. **Answer:** A

Options: A) They differ in their views about the necessity of a social contract.; B) They disagree about the role of law in society.; C) They have contrasting views on the role of religion in society.; D) They have different ideas about the importance of education.; E) They have different perspectives on economic policies.

Note: The correct answer highlights that Hobbes believes a strong social contract is essential for maintaining order and preventing chaos, while Locke argues that the

social contract is a means to protect individual rights and freedoms, reflecting their fundamentally different views on human nature and governance.

True / False

6. **Answer:** False

Options: A) True; B) False

Note: Passive personality jurisdiction is based on the nationality of the victim rather than the offender's country of residence, allowing a state to assert jurisdiction when its nationals are victims of crimes abroad.

7. **Answer:** False

Options: A) True; B) False

Note: The protective principle of jurisdiction is based on the effects of the crime on the state rather than the nationality of the offender, allowing a state to assert jurisdiction to protect its national interests and security.

8. **Answer:** False

Options: A) True; B) False

Note: The statement is false because the absence of a fee agreement does not automatically void the attorney-client relationship or the associated legal obligations, as the law recognizes that an implied contract can exist based on the acceptance of services.

9. **Answer:** False

Options: A) True; B) False

Note: The doctrine of 'margin of appreciation' was not first articulated in the *Handyside v. UK* (1976) case, as it was previously referenced in earlier cases such as the *Belgian Linguistic Case* (1968) by the European Court of Human Rights.

10. **Answer:** False

Options: A) True; B) False

Note: A conflict between a congressional act and a treaty is resolved by the Supremacy Clause of the Constitution, which establishes that treaties, when made, shall be the supreme law of the land, rather than through a national referendum.

Long Form Response

11. **Answer:** Ronald Dworkin's assertion that "the law is the only guide for ethical behaviour" serves as a foundational principle in his arguments presented in "Justice for Hedgehogs." He posits that legal frameworks not only dictate permissible actions but also encompass moral reasoning, thereby providing a cohesive structure for ethical conduct. This perspective challenges the notion of moral relativism, asserting that legal principles should be interpreted in light of ethical considerations, which ultimately influences the development and application of constitutional law. By framing law as a

moral discourse, Dworkin encourages a robust engagement with legal texts and principles, urging judges and lawmakers to consider broader ethical implications in their decisions. Consequently, this approach fosters a more integrated understanding of justice, where legal interpretations are inherently tied to ethical standards, shaping both legal practice and constitutional interpretation.

Note: correct because it encapsulates Dworkin's belief that law inherently involves moral reasoning, thereby arguing that ethical behavior is guided by legal principles, which has significant implications for interpreting constitutional law.

12. **Answer:** Officer Friendly's testimony regarding Polly's admission of negligence is admissible in the wrongful death case against her, as it constitutes an admission by a party. Under constitutional law principles, statements made by a party that acknowledge liability can be used as evidence against them in court. This aligns with the doctrine of party admissions, which allows for the introduction of statements that reflect a party's own conduct or belief regarding the matter at hand. Polly's admission to Officer Friendly, given its nature as a self-incriminating statement, is therefore relevant and can be considered by the court in determining her liability. This principle serves to promote judicial efficiency by allowing the court to consider relevant admissions that may expedite the resolution of the case.

Note: correct because Officer Friendly's testimony constitutes a party admission, which is admissible as evidence against Polly, reflecting her acknowledgment of liability in the wrongful death case under constitutional law principles.